

APPELLANT FINAL COMMENTS

S78 Planning Appeal against the refusal of detailed Planning Permission for:

The proposed construction of a detached single storey 3-bedroom self-build dwelling with associated access, driveway, parking and detached car port at Land to the rear of 124 Cheltenham Road, Bishops Cleeve

Document control

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Approved for release;

Boughton Butler Ltd.

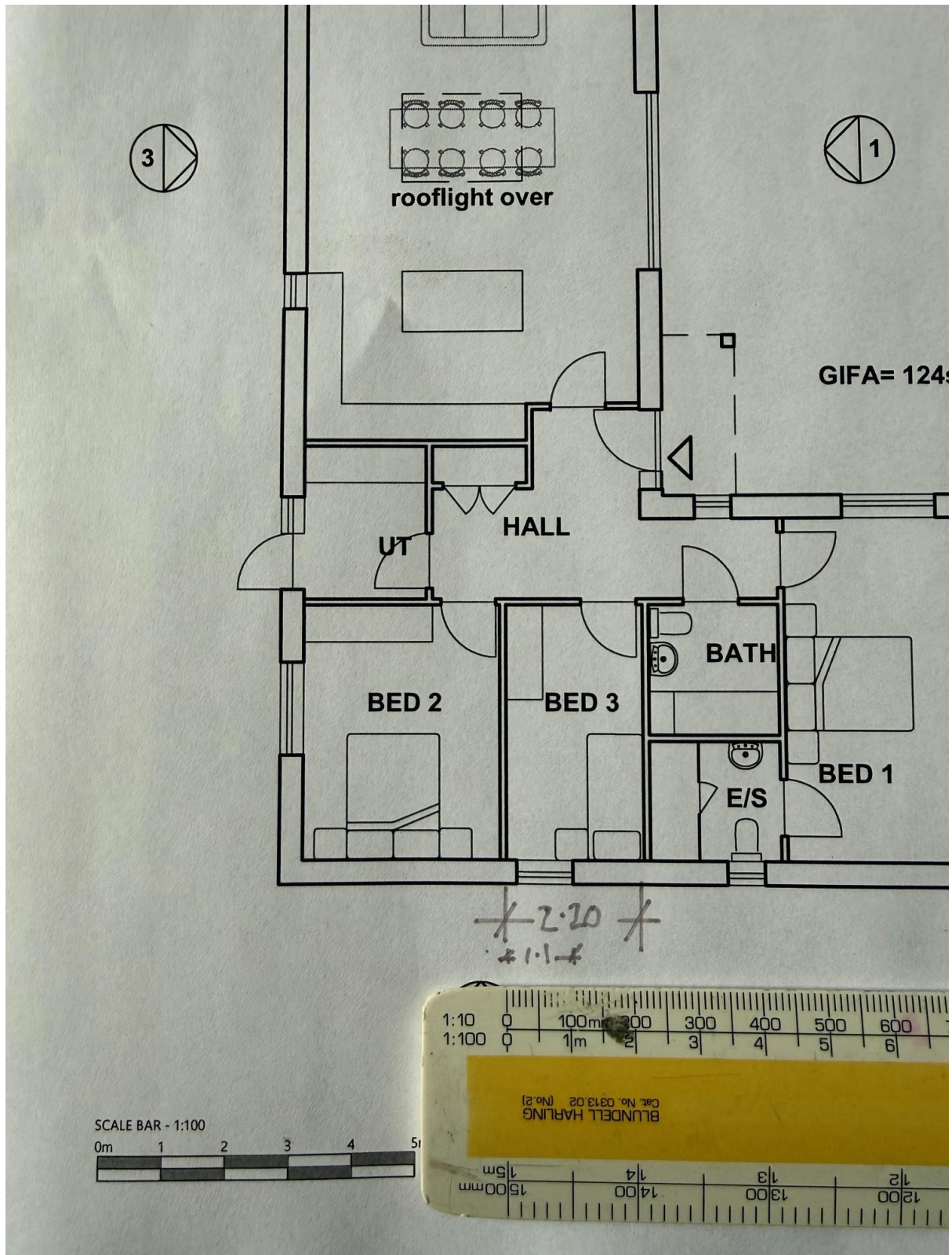
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1. Final Comments

- 1.1 These Final Comments are submitted on behalf of the Appellant in response to the Council's Statement of Case.
- 1.2 The Council's statement does not materially address or overcome the substantive planning case advanced by the Appellant. Instead, it largely repeats the reasoning of the delegated report and maintains refusal reasons that are either unsupported, overstated, or factually incorrect.
- 1.3 In particular, the Council's continued assertion that Bedroom 3 is approximately 1.1m wide and around 4sqm in area is plainly wrong. That conclusion is nonsensical on any fair reading of the submitted plans. The relevant drawing is a scaled plan with a scale bar. It clearly shows that Bedroom 3 is approximately 2.2m wide, not 1.1m, and therefore complies with the relevant Nationally Described Space Standards.
- 1.4 The Council states that it has carefully considered the Appellant's case, yet it persists with a measurement that could only have been reached by failing properly to read or scale the drawing. If Bedroom 3 were truly only 1.1m wide, the effect would be that the whole building would be materially smaller than the plans plainly show. The error is so fundamental that it undermines the credibility of the Council's assessment on this point. The image below is a manually printed, A3 scaled plan (as submitted), showing the scale bar and a scale rule laid against the floor plan. It is patently clear Bedroom 3 is not 1.1m wide.



- 1.5 This is not a minor discrepancy. It goes directly to one of the reasons for refusal. The refusal reason relating to internal living conditions is founded on a basic factual mistake. The Council has either misread the drawing or failed to understand the scaled plan, and that raises a serious concern that the application, and now the appeal, have been prejudiced by a misunderstanding of the submitted scheme.
- 1.6 The Inspector is respectfully invited to disregard this aspect of the Council's evidence. The proposal does not fail the Nationally Described Space Standards for the reason alleged. That reason for refusal should therefore fall away.
- 1.7 Once that incorrect point is stripped out, the Council's case is reduced to broad and subjective assertions regarding character, appearance and the supposed cramped form of development, without identifying any clear or persuasive planning harm.
- 1.8 As set out in the Appellant's Statement of Case, the site lies within the settlement boundary where the principle of residential development is accepted. The proposal is for a modest single-storey dwelling, carefully designed in direct response to its backland context. Its limited height, restrained bulk and considered fenestration are all intended to reduce visual impact and protect neighbouring amenity.
- 1.9 The Council's design objections remain unconvincing. They rely on an overly rigid view of contextual design, as though acceptable development must simply replicate the form of surrounding frontage properties. That is not the correct approach as this is not a prominent street frontage site. It is a backland plot with a very different spatial context and a much more limited degree of public visibility.
- 1.10 In those circumstances, a contemporary single-storey form is not inappropriate merely because it does not mimic the appearance of the main road frontage properties. Indeed, the Appellant has consistently explained that a more conventional two-storey form would likely result in greater massing, greater visual intrusion, and a more harmful relationship with neighbouring occupiers.
- 1.11 The Council also fails to engage meaningfully with the comparable development at 118 Cheltenham Road. That scheme is a highly material consideration. It demonstrates that a contemporary single-storey dwelling in a backland position is capable of being acceptable in this immediate context. No convincing basis has been provided for reaching a different conclusion in this case.
- 1.12 The appeal proposal should also be considered in the context of the wider planning balance. The Council accepts that the tilted balance is engaged. This is a modest, sustainable and deliverable dwelling within the development boundary. It would make a contribution to housing supply in a sustainable location and carries additional weight as a genuine self-build proposal.
- 1.13 Against those benefits, the Council has not identified adverse impacts that significantly and demonstrably outweigh them. The concerns raised are either matters of planning judgement that have been overstated, or, in the case of the alleged bedroom size, simply wrong.
- 1.14 Drawing these matters together, the Council's Statement of Case does not diminish the strength of the Appellant's case. On the contrary, its repetition of the plainly erroneous

Bedroom 3 measurement highlights a concerning failure to properly interpret the submitted plans. That mistake has evidently fed into the refusal and risks having unfairly prejudiced the consideration of the proposal.

- 1.15 The proposal is a well-designed, modest and context-responsive single-storey self-build dwelling in a sustainable location. It would not cause the harm alleged by the Council, and one of the refusal reasons is based on a clear factual error.
- 1.16 For these reasons, the Inspector is respectfully requested to allow the appeal.